IN THE TEXAS COURT OF CRIMINAL APPEALS

No. PD-0280-22

Joe Luis Becerra, Appellant

v.

The State of Texas, Appellee

On Petition for Discretionary Review from the Tenth Court of Appeals, No. 10-17-00143-CR, affirming the judgment in Cause No. 14-03925-CRF-361 from the 361st District Court of Brazos County, Texas

STATE'S BRIEF ON THE MERITS

The State of Texas

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October 25, 2022

IDENTITY OF PARTIES AND COUNSEL

Appellant

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The State of Texas

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TABLE OF CONTENTS

Identity of Parties and Counsel i

Table of Contents ii

Index of Authorities iv

Statement Regarding Oral Argument 1

Statement of the Case 1

Statement of Procedural History 2

Statement of Facts 3

Summary of the Argument 11

State's Response to Appellant's Three Issues 14

Prayer 45

Certificate of Service 46

Certificate of Compliance 46

INDEX OF AUTHORITIES

Cases

Becerra v. State, 620 S.W.3d 745 (Tex. Crim. App. 2021) 3, 28

Gonzalez v. State, 616 S.W.3d 585 (Tex. Crim. App. 2020) 26, 34–39

Laws v. State, 640 S.W.3d 227 (Tex. Crim. App. 2022) 1, 12

Rules

Tex. R. App. P. 44.2 43

STATEMENT REGARDING ORAL ARGUMENT

The Court denied oral argument when it granted discretionary review.

STATEMENT OF THE CASE

Appellant, Joe Becerra, was originally indicted for the offenses of Murder and Unlawful Possession of a Firearm by a Felon. The State amended Appellant's indictment on September 28, 2016. On March 6, 2017, the State proceeded to trial only on the Unlawful Possession of a Firearm charge. On March 8, 2017, the jury convicted Appellant of that offense. Following Appellant's conviction, the Trial Court found the punishment enhancements to be true and assessed punishment at 55 years in prison.

STATEMENT OF PROCEDURAL HISTORY

The Tenth Court of Appeals affirmed Appellant's conviction on June 12, 2019, ruling that Appellant failed to preserve error. Appellant filed a Motion for Rehearing on June 20, 2019, which was denied on July 5, 2019. This Court reversed on April 14, 2021, holding that error was preserved, and remanded the case back to the Tenth Court of Appeals to address the merits of Appellant's appeal. Subsequently, the Tenth Court of Appeals again affirmed Appellant's conviction. This Court then granted discretionary review again.

STATEMENT OF FACTS

Anthony Williams testified that he was employed with Brazos County 911 District for ten years. Williams was the day shift communications supervisor for the Brazos County 911 District on May 24, 2014. Through Williams, the State admitted State's Exhibit 1, a 911 call made by Amanda Mauricio. The nature of the call was shots fired and someone had been hit.

SUMMARY OF THE ARGUMENT

In his first and third issues, Appellant claims that the alternate juror's accidental 46-minute presence and participation violated Articles 33.011(b) and 36.22 of the Texas Code of Criminal Procedure. Appellant further claims that the Tenth Court of Appeals failed to apply the rebuttable presumption of harm which arises upon a violation of Article 36.22. With his second issue, Appellant contends that the alternate's participation violated Article V, Section 13 of the Texas Constitution and Article 33.01 of the Texas Code of Criminal Procedure.

STATE'S RESPONSE TO APPELLANT'S THREE ISSUES

Even assuming error, the trial court properly denied the motion for new trial.

The trial court found that, even if the alternate juror's degree of participation amounted to either constitutional or statutory error, the record established that Appellant was not harmed. The State submits that the record supports that finding and that the trial court acted within its discretion.

The alleged error did not contribute to the conviction or punishment.

The State's response addresses the issues collectively and focuses on harm and the exercise of the trial court's discretion. It asks the Court to affirm the judgment.

PRAYER

Wherefore, premises considered, the State of Texas respectfully prays that the judgment of the Trial Court be in all things affirmed.

Respectfully submitted,

/s/ Ryan Calvert

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CERTIFICATE OF SERVICE

I do hereby certify that a true and correct copy of the above and foregoing State's Brief was emailed to Lane Thibodeaux, Attorney for Appellant, at lanet1@msn.com on this the 24th day of October, 2022.

/s/ Ryan Calvert

Ryan Calvert
Assistant District Attorney

CERTIFICATE OF COMPLIANCE

I do hereby certify that the foregoing document has a word count of 11,214 based on the word count program in Word 2013.

/s/ Ryan Calvert

Ryan Calvert

Assistant District Attorney